

Missouri conviction expungement filing guide

Packet and filing location

Prepared for Jordan Alexandria Example. This is a synthetic example, not an actual person or case.

This packet concerns Missouri arrest, plea, trial or conviction records under section 610.140. File in Jackson County, where every listed matter was charged or the finding of guilt entered.

Included: CR360 petition; FI-05 confidential filing sheet; the attached continuation when shown; CR370 only because this synthetic fixture says the court expects a proposed judgment; GN10 only when the participant asked for a fee-waiver form; and these instructions.

The clerk assigns the new expungement case number and filing date. The judge or clerk assigns the division. Leave all court findings, hearing information, judgment date and judge signature blank. The participant personally reviews and signs CR360.

Verify records and participant fields before filing

Obtain a Case.net printout, certified docket sheet and judgment for every case; any probation or parole discharge; clerk payment histories showing all fines, costs and restitution satisfied; and a fingerprint-based Missouri State Highway Patrol record. Compare every case number, court, charge date, county or municipality, offense description, completion date, OCN and prior-expungement answer.

Confirm the participant identity and contact data: full legal name, date of birth, sex selection, race and ethnicity selection, current address, driver-license number/state/expiration, phone, email and full Social Security number for confidential FI-05. FI-05 is confidential and must go through the clerk's confidential filing channel.

Confirm every agency defendant against the records. An expungement order does not affect an entity that is not named. Do not invent an agency or address. Extra records and agencies are carried on the continuation.

Review CR360 paragraphs 1 through 7 and the prior-expungement election. The official form prints sworn factual and legal statements. LegalEase has not chosen the public-safety or interests-of-justice conclusions. Sign only if every printed statement and attachment is true.

Fees, signatures and clerk handback

Ask the filing clerk for the current county-variable filing fee, accepted payment method, copy count, and whether the court expects CR370. The former \$250 surcharge was repealed and is not quoted here.

If requesting a waiver, review GN10's income, expenses, assets and debts; supply the Respondent's Address/Telephone caption field as the clerk directs for multiple defendants; then personally date and sign the penalty-of-perjury statement. The held SJRC (07-15) GN10 is one page and carries no page-two court order. No income answer, signature or court decision is inferred.

The participant does not serve the prosecutor. The clerk gives statutory notice. A prosecutor may object within thirty days after receiving service; the court may set a hearing. Obtain the actual hearing notice from the court rather than writing a date or claiming notice occurred.

After a signed judgment, obtain a filed copy and ask which named agencies received it. CR370 in this packet is an unsigned proposal and is never proof that relief was granted. Missouri relief closes records under section 610.120; it does not destroy them.

Stop and get legal or clerk help

Stop if any listed matter is in another filing county, if the waiting period measured from completion has not run, if obligations remain unpaid or disputed, if charges are pending, or if the clean-period condition is not met.

Stop for counsel if any offense may be a class A or dangerous felony, a registration offense, a felony involving death, felony assault, domestic assault, felony kidnapping, an excluded sex offense, an intoxication-related traffic/boating/aircraft offense, an equivalent ordinance violation, a commercial-driver motor-vehicle offense, or an unlawful-use-of-weapons offense.

Stop if prior expungements may exhaust the lifetime cap, crimes may or may not be part of one course of conduct, the prosecutor or a victim contests relief, or a denial/appeal requires litigation.

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These packet pages prepare forms; they do not decide eligibility, make sworn statements for the participant, or provide a court ruling.